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File No.: EXP202406781

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on April 23, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On April 23, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against ASOCIACIÓN DE USUARIOS DE BANCOS, CAJAS Y SEGUROS (hereinafter, the respondent) for not having duly addressed the right to erasure of their personal data. The complainant states that "On 05-03-2024, I requested the deletion and destruction of my personal data as well as a document certifying this action. Since there was no response by 21-4-2024, I resent this file to the same email address lopd@adicae.net requesting the aforementioned DELETION. I know that three days have passed. But it took them almost 5 months to delete my data, and honestly, I don't feel like fighting with them."

The complainant has provided the following documentation:

- Email dated March 5, 2024, from the complainant to the respondent (lopd@adicae.net) "Attached is a digitally signed request and a photocopy of my ID for the deletion of my personal data from your database as well as the destruction of any type of document referring to me. I also request that you certify this deletion (...).
- Exercise of the right to erasure dated March 5, 2024, and signed by the complainant.
- Photocopy of the complainant's ID (front and back).
- Email dated April 21, 2024, from the complainant to the respondent (lopd@adicae.net) "More than 30 days have passed since my email (which I attach at the bottom of this document) without news. I request information on this matter (...).

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The notification of this transfer occurred on May 7, 2024.

On June 6, 2024, the respondent stated in their response to this transfer that, in summary:

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The respondent indicated that "(...) The request for the right to erasure in question was submitted by the user to the email address lopd@adicae.net on March 5, 2024. Attached as ANNEX No. 1 is the proof of submission of the exercise of the right.

Once the request was received, the information in our database was deleted, which we submit as ANNEX No. 2, in screenshots of the updated Excel regarding member deletions.

Subsequently, on April 21, 2024, we received a second email requesting the erasure of their data, as detailed in ANNEX No. 1. When the first request for the right arrived at the indicated email address, the IT department deleted the user's data for the purpose of sending communications, but no response was made to the user.

Seeing that both requests were submitted by the same user, an investigation was opened regarding this matter, and it was confirmed that, with the first request, their data was erased.

(...) The response to the exercise of the right was carried out on May 23, 2024, as can be verified by ANNEX No. 3, which contains the response to the complainant's exercise of the right and proof of its sending.

(...) The user's data was deleted for the purpose of sending communications, all in accordance with the

provisions of Article 17.1 of Regulation (EU) 2016/679 General Data Protection Regulation and Article 15 of Organic Law 3/2018 on the Protection of Personal Data and Guarantee of Digital Rights, and the consequent blocking of the same, in accordance with Article 32.1 of the aforementioned Data Protection Law, (...).

The information of the interested party, therefore, will be identified and reserved, adopting technical and organizational measures to prevent its processing, including its viewing, except for the provision of the data to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations."

The respondent states that "(...) Following the complaint, immediate action was taken to detect and assess the reported incident, and thereafter, a response was provided to the right of erasure submitted by the user, as indicated in ANNEX No. 3. (...)

"(...) The request for the right was submitted to the email address lopd@adicae.net on March 5, 2024. When the entity became aware of the request, the user's data was deleted from the system, but communication to the interested party was not carried out.

Later, on April 21, 2024, another request for the erasure of personal data was received from the same person. The entity, realizing that the email came from the same recipient, began to investigate what had happened,

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whereas, when the first of the requests was received, the IT department proceeded to delete data.

In this regard, the entity became aware that the person responsible for said email, designated as indicated in document ANNEX No. 4, is currently on sick leave, as can be seen in document ANNEX No. 5, which is the reason for the delays in the response.

Upon receiving the request at the email of the person who is on sick leave, it became blocked without being answered and was not forwarded to another person or to the Data Protection Officer that the entity has, which is why it was not responded to in a timely manner, being a specific, isolated, and completely unintentional error that has already been corrected as soon as this party became aware of it."

Documentation provided:

- ANNEX No. 1.- Request for the exercise of the right to erasure by the claimant dated March 5, 2024, and the emails sent (already provided by the claimant along with their complaint).
- ANNEX No. 2.- "Excel list of members on leave." Excel report of different interested parties with their dates of request for leave, among which the data of the claimant is included.
- ANNEX No. 3.- Email dated May 23, 2024, from the respondent party addressed to the claimant in which they state, "In response to your request for the erasure of your personal data, we attach a document to block your data. Once you have signed it, we kindly ask you to send it back to us for processing." An attached letter informs them that their request has been granted and that the data has been blocked, with the following content: "Dear, In response to your request received on April 21, 2024, in which you request the erasure of your personal data contained in the files under the responsibility of the Association of Bank, Savings Bank, and Insurance Users, we inform you of the following: After the relevant checks, we have proceeded to grant your request, in accordance with the provisions of Article 17.1 of Regulation (EU) 2016/679 General Data Protection Regulation and Article 15 of Organic Law 3/2018 on Data Protection and Guarantee of Digital Rights, and the consequent blocking of the same, in accordance with Article 32.1 of the aforementioned Data Protection Law (...)"
- The remaining annexes, from No. 4 to No. 10, are various documents related to the person responsible for addressing rights in data protection matters, their medical leave certificate, as well as several documents regarding the action protocol.

THIRD: For the reasons stated, this Agency, in its resolution dated July 17, 2024, considered that the right had been addressed.

"In particular for the following circumstances:

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The claiming party states that on March 5, 2024, they sent a request for the deletion of their data to the entity being claimed, sending their request to the email address lopd@adicae.net, without having received a proper response once the period established by data protection regulations for this purpose had elapsed. On April 21, 2024, they sent a new email requesting attention to their request, again without receiving a response.

In accordance with the regulations outlined, prior to the admission of the claim for processing, it was communicated to the entity being claimed to proceed with its analysis and respond to this Agency within one month. Furthermore, the entity being claimed was requested to provide information on certain aspects related to the facts subject to the claim, in order to understand the circumstances of the specific case and to admit or reject the claim for processing.

In response to the transfer and information actions carried out, this Agency has received a written response from the entity being claimed in which, for the purposes relevant here, it states the following: The entity being claimed states that, due to a specific error, there was no response in a timely manner; on May 23, 2024, an email was sent informing that they have proceeded to grant the request.

Once the reasons presented by the entity being claimed, which are part of the file, were analyzed, this Agency considers that the requested right has been addressed.

For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Agency for Data Protection AGREES to reject the claim for processing.

FOURTH: Dissatisfied with the resolution, on July 17, 2024, the claiming party filed a motion for reconsideration arguing that, despite what was stated by the entity being claimed, they have not received confirmation of the deletion of their personal data, but rather an email dated May 23, 2024, in which they were sent a data blocking document that needed to be signed and sent to the entity being claimed for processing. It is reported that they responded to that email, insisting that they had already exercised the right to deletion, and therefore should not send anything further.

Once the corresponding Reconsideration Procedure was instructed, on September 27, 2024, the entity being claimed was given the opportunity to respond, which submitted a written statement on October 3, 2024, reiterating what was stated in their previous response in which they provided "as evidence, in document ANNEX No. 3, the response made to the appealing party confirming the deletion of their personal data."

When an interested party requests a data controller to delete their personal data, they are obliged to delete the personal data without undue delay when it is no longer necessary for the purposes for which it was collected.

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"(...) Well, in the present case, the respondent has stated in response to the transfer of the claim that it addressed the right to data erasure via an email dated May 23, 2024, in which it was stated:

"In response to your request for the erasure of your personal data, we attach a document to block your data. Once you have signed it, we kindly ask you to send it back to us for processing."

That is to say, the respondent has not addressed the right to erasure, as it has merely sent the appellant an email requesting that they return an attached document that must be signed to confirm that their personal data will be erased, which would then be blocked, without explaining why it has not been able to carry out the requested erasure in response to the right exercised on March 5, 2024, and requires a new request. It also does not inform how long the personal data would remain blocked.

Therefore, in this case, the appeal for reconsideration has expanded the information and provided relevant arguments for the matters raised, which must be analyzed by the General Sub-Directorate for Data Inspection, and the appeal filed should be upheld.

Consequently, on October 9, 2024, the Director of this Agency upheld it because new facts were presented that prove that the respondent has not addressed the requested right to erasure.

FIFTH: As a result of the acceptance of the aforementioned Reconsideration Appeal, the present Rights Procedure was opened, transferring the documentation to the respondent, so that within ten working days they could present any allegations they deemed appropriate.

The respondent submitted a document to this Agency dated October 25, 2024, indicating that "(...) FIRST. - The ASSOCIATION OF BANK, SAVINGS BANK, AND INSURANCE USERS reiterates what was stated in the allegations made on June 6, 2024, in order to avoid duplicating allegations and documents, where it provides as evidence, in document ANNEX No. 3, the response made to the claimant confirming the erasure of their personal data.

In this regard, it can be seen that a response was indeed made to the interested party, accepting their request and erasing their personal data.

SECOND. - Regarding the response given to the interested party, the body of the email message indicated that the response document was attached, as well as information about the blocking of the data. It was also indicated that it should be returned signed as an acknowledgment of receipt of the message, so that the data controller could ensure that they had received the data erasure document.

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At no time was it intended to create confusion regarding the erasure of the interested party's data, but rather, simply to confirm the receipt of the document indicating that the request is accepted and that their data will be blocked and erased.

(...)

(...) FOURTH. - The entity has also complied with the provisions of Article 17 of the GDPR when responding to the interested party, accepting their right to erasure. In this article, the blocking of data is not mentioned; however, the entity, in the response made to the interested party on May 23, 2024, in order to comply with the duty of transparency towards the interested party, refers to Article 32 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, so that they are aware that their data will be blocked, indicating that "the blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures, to prevent their processing, including their visualization, except for making the data available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations."

SIXTH: After examining the document submitted by the respondent, it is transferred to the claimant, so that, within ten working days, they may formulate any allegations they deem appropriate.

The claimant responded to this Agency on October 26, 2024, stating that

"After reading those mentioned in Annex 2 (from page 5 to 7), I must clarify some points that I believe are very interesting and seem to have been forgotten and/or not commented on.

I. I must inform this Agency that my request dates back to January 20, 2023 (following instructions from that entity) in which I already requested the cancellation, as evidenced in document ANNEX I.

II. Not having received responses, on March 5, 2024, I sent them another email as well as requested a cancellation certificate (1) ANNEX II.

III. After more than 30 days, I sent another email on April 21, 2024, requesting the cancellation ANNEX III.

IV. On May 23, 2024, they finally responded, in which they sent me the document again, which I remind you was already sent in January 2023. ANNEX IV.

V. On that same date and after more than a year and having sent the documentation, I responded indicating that I would not send anything else and that they should acknowledge receipt ANNEX V.

VI. I attach the acknowledgment of receipt of the mentioned email. No response ANNEX VI.

Response to the allegations:

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FIRST: They say that I have been notified of the cancellation; if that were true, I would have no need to continue the process. (...)

SECOND: After having submitted the cancellation request twice, they say they do not intend to confuse, and they are right about that, but causing work/headaches for the User is not acceptable.

THIRD: I refer to my note (1) at the end of this document, supported by Article 19 of the GDPR. Is it really the case that if the person/employee responsible for this department is on leave, everything is put on hold? And I clarify that as of today (26-10-2024), I still have not received any notification of cancellation. Until recently (it could have been two or three months at most), I was able to access my Personal Area, if I remember correctly (I do not have documentation to prove it). (...)

The claimant provides:

- An email dated January 19, 2023, from the respondent to the claimant indicating that "You are addressing the data protection email, so we will proceed to remove your email address for future communications. If what you wish is to cancel your membership, attached to this email is the form you must fill out and send to socios@adicae.net indicating the reason for the cancellation. Also, the form for the deletion of your data. You can also send these documents by postal mail to the following address (...)"
- An email dated January 20, 2023, from the claimant to the respondent: "(...) Once filled out, I will return these forms to you so that I can be canceled as a member as in the B. Data (...)."
- A letter from the claimant addressed to the respondent dated January 19, 2023, indicating "(...) for all these reasons, I requested the cancellation of my membership/supporter status and the cancellation of all relationships/databases/etc. that this association holds. (...)"
- A request for cancellation as a member of ADICAE and a request for the deletion of personal data dated January 20, 2023, and signed by the claimant.
- The documents already submitted along with the complaint.
- An email dated May 23, 2024, from the respondent to the claimant, previously submitted by the respondent, in which they indicate that "In response to your request for the deletion of your data, we attach a document to block your data. Once you have signed it, we kindly ask you to send it back to us for processing."

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- An email dated May 23, 2024, from the claimant to the respondent indicating that "I have already sent you the letter; I will not send any more."
- An email dated May 24, 2024, from the respondent as an automatic acknowledgment of receipt of the message sent by the claimant.

SEVENTH: After granting a hearing to the respondent, they submitted a document to this Agency, dated November 19, 2024, in which they indicate:

"FIRST. – The ASSOCIATION OF BANK, SAVINGS BANK, AND INSURANCE USERS reiterates what was stated in the allegations made on June 6, 2024, in order to avoid duplicating allegations and documents, where it is provided as evidence, in document ANNEX No. 3, the response made to the claimant confirming the deletion of their personal data.

In this regard, it can be appreciated that a response was indeed made to the interested party, acknowledging their request and deleting their personal data.

In the response provided, the following is stated verbatim:

"After the pertinent checks, we have proceeded to accept your request, in accordance with the

provisions of Article 17.1 of Regulation (EU) 2016/679 General Data Protection Regulation and Article 15 of Organic Law 3/2018 on Data Protection and Guarantee of Digital Rights, and the consequent blocking of the same, in accordance with Article 32.1 of the aforementioned Data Protection Law...". From the above, it follows that a response was indeed given to the interested party, as it is indicated that their request for deletion is accepted.

(...) In the case presented, although no response was given to the exercise of the right to deletion within the established legal timeframe, the interested party has not experienced any direct or material harm regarding the processing of their data.

(...) THIRD. - That the new documents submitted during the hearing process by the appellant, corresponding to pages 6, 7, 8, 9, and 10 of Annex 2, received on October 29, 2024, should not be admitted, as they cannot be taken into account in the resolution of the appeals, facts, documents, or allegations of the appellant, when they could have been submitted during the allegations phase but did not do so. (...)"

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the

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LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

The initiation of this procedure occurs due to the failure to address a request for the exercise of rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the

requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. They include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
 - b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
 - c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
 - d) the personal data have been unlawfully processed;
 - e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
 - f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).
2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller...

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Considering the available technology and the cost of its application, it will adopt reasonable measures, including technical measures, aimed at informing those responsible who are processing the personal data of the data subject's request for the deletion of any link to that personal data, or any copy or replica thereof.

3. The provisions in paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation that requires the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing; or
- e) for the formulation, exercise, or defense of claims."

V

Conclusion

In the case analyzed here, from the examination of the documentation provided by the parties during the instruction of this file related to the Facts, it has been established that the claiming party exercised their right to deletion and that, after the period established in the aforementioned regulations, their request was not attended to.

During the instruction of the file, the responding party stated that, due to a lack of personnel, they did not respond to the claiming party when they received their request, proceeding to do so later, on May 23, 2024, sending them an email in which they indicate that "In response to your request for the deletion of your personal data, we attach a document to block your data. Once you have signed it, we kindly ask you to send it back to us for processing." They also attached a letter informing that they have proceeded to accept their request and block the data.

The claiming party responded to the responding party expressing their disagreement with this response, as it is inferred from the same that, for their right to deletion to be attended to, the claiming party must sign and send back the documents provided to them.

The responding party indicated in the allegations presented to this Agency that "(...) Regarding the response given to the data subject, it was indicated in the body of the email message that the response document was attached, as well as the information about the blocking of the data. It was also indicated that it should be returned signed as an acknowledgment of receipt of the message, so that the responsible entity for processing could ensure that the document for data deletion had been received."

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At no time was it intended to create confusion regarding the deletion of the data of the interested party, but rather to simply confirm the receipt of the document indicating that the request is acknowledged and that their data will be blocked and deleted. (...)

Despite what was stated by the responding party, upon analyzing the response given to the complaining party, it indicates that the complaining party should sign the documentation provided to exercise their right, not that this documentation serves as an acknowledgment of receipt: "In response to your request for the deletion of your personal data, we attach a document to block your data. Once you have signed it, we kindly ask you to send it back to us for processing."

Therefore, the response sent on May 23, 2024, by the responding party to the complaining party cannot be considered legally compliant regarding the requested right of deletion.

Consequently, based on the above, it is appropriate to formally uphold the complaint submitted.

In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by A.A.A., against the ASSOCIATION OF BANK, SAVINGS BANK, AND INSURANCE USERS. However, a new certification from the responding party is not warranted, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to the ASSOCIATION OF BANK, SAVINGS BANK, AND INSURANCE USERS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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